

Amendment No. 1 to SB1724

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1724*

House Bill No. 1815

by deleting SECTION 3 and substituting:

SECTION 3. Tennessee Code Annotated, Title 41, Chapter 4, Part 1, is amended by adding the following as a new section:

41-4-145.

(a) A sheriff, jail administrator, or deputy jailer may refuse or delay acceptance into the jail an arrestee if the arrestee has not received medical treatment for obvious serious physical injuries or conditions of an emergency nature.

(b) Upon refusal or delay under subsection (a):

(1) The sheriff, jail administrator, or deputy jailer shall document the factual basis for the determination.

(2) It is the responsibility of the arresting law enforcement agency to obtain medical attention for the arrestee prior to delivery to the jail.

(c) Upon medical release by the healthcare facility or healthcare provider, the sheriff, jail administrator, or deputy jailer must assume custody of the individual when presented at the jail. The arresting agency shall provide the jail with the medical release or discharge documentation from the healthcare provider or healthcare facility.

(d) Notwithstanding this section, the sheriff, jail administrator, or deputy jailer may accept an arrestee into custody who appears to be in need of medical attention and who refuses medical examination or medical attention. The sheriff, jail administrator, or deputy jailer is immune from civil and criminal liability for accepting such arrestees into custody.

AND FURTHER AMEND by inserting the following new section immediately preceding the last section and renumbering the subsequent section accordingly:

SECTION 4. Tennessee Code Annotated, Section 8-8-201, is amended by adding the following new subsection:

(c) A sheriff, jail administrator, or deputy jailer whose duty it is to receive persons arrested pursuant to law may refuse or delay acceptance of an arrestee as provided in § 41-4-145.